

**CHAPTER lxxiv.**

An Act to extend the time limited for the completion of certain works to enable the Milford Docks Company to acquire lands compulsorily and for other purposes.

A.D. 1911.

[18th August 1911.]

WHEREAS by the Milford Docks Act 1874 the Milford Docks Company (in this Act called "the Company") were incorporated and by that Act and the Milford Docks Act 1875 were empowered to make the docks and works therein respectively described:

And whereas various Acts have from time to time been passed relating to the Company and their affairs:

And whereas by the Milford Docks Act 1890 (hereinafter called "the Act of 1890") the Company were authorised to construct the pier therein more specifically described and the period for the completion of the said pier was limited to five years from the passing of that Act which received the Royal Assent on the fourth day of July one thousand eight hundred and ninety and by the Milford Docks Act 1894 (hereinafter called "the Act of 1894") the Milford Docks Act 1898 (hereinafter called "the Act of 1898") the Milford Docks Act 1901 (hereinafter called "the Act of 1901") and the Milford Docks Act 1906 (hereinafter called "the Act of 1906") such period was extended until the fourth day of July one thousand nine hundred and eleven and it is expedient that such period be further extended as hereinafter provided:

And whereas it is expedient that the Company be authorised to purchase the lands hereinafter mentioned:

And whereas it is expedient that the Company should be authorised to lease the graving dock of the Company and that

A.D. 1911. further powers should be conferred on the Company with reference to the sale exchange or lease of lands forming portion of the Company's undertaking :

And whereas plans of the lands intended to be acquired compulsorily under the powers of this Act and a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of such lands have been deposited with the clerk of the peace for the county of Pembroke and are in this Act referred to as "the deposited plans and book of reference" respectively :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short title.

1. This Act may be cited as the Milford Docks Act 1911.

Incorporation of Acts.

2. The following Acts and part of an Act are so far as applicable to and except where expressly varied by or inconsistent with this Act incorporated with and form part of this Act (that is to say) :—

The Lands Clauses Acts ; and

Part II. (relating to extension of time) of the Railways Clauses Act 1863 and in construing the provisions of the said Part II. for the purposes of this Act the pier authorised by the Act of 1890 shall be deemed to be a railway and the company shall be deemed to be a railway company.

Interpretation.

3. In this Act the several expressions and words to which meanings are assigned by the Milford Docks Act 1892 (hereinafter referred to as "the Act of 1892") and the Acts wholly or partially incorporated with that Act and this Act respectively have the same respective meanings unless there be something in the subject or context repugnant to such construction.

Extension of time for completion of pier.

4. The period limited for the completion of the pier authorised by the Act of 1890 as extended by the Act of 1894 the Act of 1898 the Act of 1901 and the Act of 1906 is hereby further extended for a period of five years from the fourth day of July one thousand nine hundred and eleven and the

Act of 1890 shall be read and have effect as if such extended time had been originally named therein as the period limited for the completion of the pier thereby authorised. A.D. 1911.

5. Subject to the provisions of this Act the Company may for the general purposes of their undertaking enter upon take and use the lands hereinafter described and shown upon the deposited plans and described in the deposited book of reference and may hold and use for those purposes such of the said lands as have already been purchased or acquired by them and the expenditure of money by the Company in or in connection with the purchase or acquisition of the said lands is hereby sanctioned and confirmed Provided that the said lands so already purchased or acquired by the Company shall for the purposes of section 3 of the Housing of the Working Classes Act 1903 be deemed to have been acquired under the powers of this section The lands above referred to and by this section authorised to be entered upon taken appropriated and used are as follows:—

Power to take additional lands.

(1) Lands in the parish of Hubberston in the rural district of Haverfordwest in the county of Pembroke situate on the west side of and adjoining Hubberston Pill and known as a portion of the Goose Pill Farm :

(2) Lands in the parish of Milford in the urban district of Milford Haven in the county of Pembroke situate at or near the eastern end of and adjoining that part of the Company's property known as the Old Dock Yard together with the foreshore adjacent thereto.

6. All private rights of way over lands which shall under the powers of this Act be acquired compulsorily shall as from the date of such acquisition be extinguished Provided that the Company shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement. As to private rights of way over lands taken compulsorily.

7. The powers of the Company for the compulsory purchase of the lands which they are by this Act authorised to acquire shall cease after the expiration of three years from the passing of this Act. Period for compulsory purchase of lands.

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Persons
under dis-
ability may
grant ease-
ments &c.

8. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in or affecting any such lands and the provisions of the said Acts with respect to lands and rent-charges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Correction of
errors &c. in
deposited
plans and
book of
reference.

9. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Company after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the county of Pembroke for the correction thereof and if it appear to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the clerk of the peace for the county of Pembroke and a duplicate thereof shall also be deposited with the clerk to the district council of the district in which the lands affected thereby are situate and such certificate and duplicate respectively shall be kept by such clerks respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Company to take the lands in accordance with such certificate.

Power to
purchase and
erect works.

10. The Company may by themselves or jointly with any other corporation company or person on any lands of the Company or with the consent of the parties interested therein on any lands immediately adjacent thereto purchase acquire and hold and erect build extend provide equip maintain and manage for the purposes of or in connection with the trade at the Company's docks fish curing and fish smoking houses granaries and other buildings or works of a character authorised by the Company's Acts except works for the supply of water or the manufacture of fish oil fish manure or other resultants from fish

and may employ officers managers and servants therein or in connection therewith and may subscribe to or advance money to any company established for any such objects on such lands and may apply their funds to any such purposes and may let on lease any such buildings or works.

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11.—(1) Notwithstanding anything contained in the Acts relating to the Company or in any Act or Acts incorporated therewith the Company may in respect of any lands acquired or to be acquired by them for the purposes of their dock undertaking and which are not in the opinion of the Company immediately required for the purposes of their undertaking grant leases for such term or terms as they may deem expedient of any of such lands of the Company together with any works which may have been commenced or completed thereon by the Company to any person corporation or company (such corporation or company being capable at law to accept such leases) with a view to the improvement by the lessees of such lands by laying out money in the construction or erection thereon of buildings or works for the purpose of any trade or business ancillary to or convenient to be carried on with the dock undertaking of the Company except works for the supply of water or the manufacture of fish oil fish manure or other resultants from fish and they may also grant to such lessees the use during their respective leases of such waterway quay room and wharfage room and other easements as may be requisite or convenient for the purpose of the trade or business to be carried on.

Power to
Company to
grant leases.

(2) Every such lease shall be made with and subject to such exceptions reservations yearly or other rents or payments covenants conditions powers and provisions whatsoever as the parties thereto may mutually agree upon.

(3) Every such lease shall contain due provision for securing the payment performance and observance by the lessees thereunder of the rent (if any) covenants and provisions in and by the same respectively reserved and contained and on their part to be respectively paid performed and observed and provisions for the determination of any such lease and the right of re-entry by the lessors in the event of any breach or non-observance or non-performance of any covenant condition stipulation or provision of such lease.

(4) A duplicate or counterpart of every such lease shall be executed by the lessees therein named and be delivered to the Company.

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For protec-
tion of
National
Provident
Institution.

12. Nothing in this Act shall be deemed to authorise the use or the leasing of any lands already acquired or hereafter to be acquired by the Company or of the foreshore adjacent thereto without the consent of the National Provident Institution their successors or assigns owners for the time being of the Milford Haven Estate of the said institution for the purpose of the manufacture of fish oil or manure or otherwise for utilising fish offal or any other works calculated to produce offensive effluvia so as to be obnoxious to the said institution or their tenants.

Power to
lease graving
dock.

13. The Company may for such term or terms and on such conditions as they may deem expedient lease to any corporation company or person the existing graving dock of the Company and any portion of the lands and quays adjacent thereto and any buildings engineering shops or other conveniences in connection therewith and may by any such lease confer on the lessees all or any of the powers of the Company in connection with such graving dock lands or quays including the power to take and levy tolls rates and other charges in respect of the user thereof and such lease shall duly take effect as a transfer of the powers exerciseable by the Company so purporting to be transferred thereby.

Power to
sell and
lease lands
&c.

14. The Company may notwithstanding anything contained in the Lands Clauses Consolidation Act 1845 or any Act relating to the Company with which that Act is incorporated retain hold or use and from time to time for such considerations at such rents and upon such terms (pecuniary or otherwise) and conditions as they may from time to time think fit sell exchange or lease any lands from time to time belonging to them and which may not be required for the purposes of the Company's undertaking and (for such term or period as they may think proper) lease or grant the use or occupation of or easements or rights over or affecting any warehouses buildings wharves yards cranes machines or other works or conveniences for the time being belonging to or provided by them :

Provided that the Company shall not lease any lands under the powers of this section for the purpose of the manufacture of fish oil fish manure or other resultants from fish.

Works below
high-water
mark not to
be com-
menced

15. The Company shall not under the powers of this Act construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work

without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of such approval being signified as last aforesaid and where any such work may have been constructed the Company shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like consents or approvals. If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Company and the amount of such costs and charges shall be a debt due from the Company to the Crown and shall be recoverable as a Crown debt or summarily.

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without
consent of
Board of
Trade.

16. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Company to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give).

Crown
rights.

17. In the event of the Company subscribing or advancing money to any other company under the section of this Act the marginal note whereof is "Power to purchase and erect works" the accounts of the Company shall show the separate amounts subscribed or advanced by the Company and any income received by the dock company in respect of such subscriptions or advances.

As to
accounts.

18. The moneys to arise from the creation and issue of Milford Docks special charge debenture stock or the granting of Milford Docks special mortgages as the case may be shall (except in the case of special charge debenture stock or special mortgages issued or granted for the purposes of redeeming special

Extension of
section 11
of Act of
1892 and
section 13
of Act of
1894.

A.D. 1911. charge debenture stock or paying off special mortgages which shall be applied to those purposes respectively) be applied in or towards the payment of the costs and expenses of and incident to the preparation of applying for and obtaining and passing of this Act and to the payment of the cost of the acquisition of the lands which the Company are by this Act authorised to acquire and for the purposes of or for carrying into effect the provisions of the section of this Act the marginal note whereof is "Power to purchase and erect works" in addition to the other purposes mentioned in section 11 of the Act of 1892 and in addition the Company may apply for any of the purposes of this Act to which capital is properly applicable any moneys which they are by any previous Act or Acts authorised to raise by shares stock or debenture stock or borrowing and which are not by the Act or Acts under which they are authorised to be raised made applicable to any special purposes or which being so made applicable are not required for such special purposes.

Recovery of demands.

19. Proceedings for the recovery of any demand made under the authority of this Act or the former Acts or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Costs of Act.

20. All costs charges and expenses of and incident to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

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